

LW5671: CONSUMER LAW

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Consumer Law

Subject Code

LW - Law

Course Number

5671

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

LW5602A Law of Contract I

Precursors

Nil

Equivalent Courses

LW4675 Consumer Law

Exclusive Courses

Nil

Part II Course Details

Abstract

Consumer law course is aimed to provide a full examination of consumer law in Hong Kong SAR generally, and consumer protection legislation and regulation in a more regional and global context (different regimes of consumer protection worldwide).

The course examines issues particular to commercial practices and transactions where one party is a consumer (= b2c contracts). Consumer typically represents a weaker party in its commercial relations with the traders at the global market. Different regulatory techniques for protection of consumers will be assessed (e.g. manners and methods for verification of the fairness of consumer contracts and commercial practices of traders towards consumers, cooling-off periods, online consumer transactions, etc.). The course will eventually provide the participants with a complete knowledge of consumer law and its particularities.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if DEC-A1 app.)	DEC-A1	DEC-A2	DEC-A3
1	Explore and explain analytically: - the main idea of consumer law; - knowledge of substantive areas of consumer law; - the historical development of consumer law and its connection with other laws; - the justifications for the existence of consumer law; and - the major theoretical and philosophical approaches that have guided the law in all stages of its development.	40	x	x	
2	Critically evaluate and discover: - the changing regulatory design of consumer protection; - the relevance of consumer law in an era of free market economy and globalisation; and - the efficacy of consumer protection.	30	x	x	
3	Apply consumer law to: - solve different types of consumer problems and cases; and - provide legal advice to consumers.	30	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs	Brief Description	CILO No.	Hours/week (if applicable)
1	Interactive seminars	1, 2, 3	
2	Hypothetical scenarios	3	

3	Case studies, role plays, and presentations		1, 3	
4	Reflective and exploratory readings		1, 2, 3	

Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Assignment	1, 2, 3	30	-	No
2	In-class participation	1, 2, 3	20	-	No

Continuous Assessment (%)

50

Examination (%)

50

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Grading of Student Achievement: Standard (A+, A, A-...F). Grading is based on student performance in assessment tasks / activities.

Applicable to students admitted in Semester A 2022/23 and 2023/24

To pass this course, student must obtain an aggregate mark of 50% and a minimum of 50% in each of the coursework and the examination elements of the assessment. Coursework for this purpose means those ways in which students are assessed otherwise than by the end of session examination.

Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter

To pass this course, student must obtain an aggregate mark of 40% and a minimum of 40% in each of the coursework and the examination elements of the assessment. Coursework for this purpose means those ways in which students are assessed otherwise than by the end of session examination.

Assessment Rubrics (AR)**Assessment Task**

In-class discussion

Criterion

Students are required to attend at least 70% of the classes (lectures, seminars, presentations). If a student does not meet this requirement, he/she may be disqualified for assessment. Students must also participate in class activities and discussion.

Excellent

Strong evidence of original thinking; good organisation, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

Evidence of grasp of subject, some evidence of critical capacity and analytical ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

Little evidence of familiarity with the subject matter; weakness in critical and analytical skills; limited or irrelevant use of literature.

Assessment Task

Written assignment

Criterion

To pass this course, students must obtain an aggregate mark of 40% and a minimum of 40% in each of the coursework and the examination elements of the assessment. Coursework for this purpose refers to those assessment opportunities other than the final examination.

Excellent

Strong evidence of original thinking; good organisation, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

Evidence of grasp of subject, some evidence of critical capacity and analytical ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

Little evidence of familiarity with the subject matter; weakness in critical and analytical skills; limited or irrelevant use of literature.

Assessment Task

Final examination

Criterion

Two hours examination.

Excellent

Strong evidence of original thinking; good organisation, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

Evidence of grasp of subject, some evidence of critical capacity and analytical ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

Little evidence of familiarity with the subject matter; weakness in critical and analytical skills; limited or irrelevant use of literature.

Part III Other Information

Keyword Syllabus

Consumer law, cyber consumer law, consumer sales law, product liability, product safety, trading practices, consumer protection, redress, consumer, market, businesses, unfair commercial practices, competition law

Reading List

Compulsory Readings

Title	
1	Howells, G., Ramsay, I., Wilhelmsson, T., & Edward Elgar Publishing, publisher. (2018). Handbook of research on international consumer law (Second ed., Research handbooks in international law). Northampton, MA: Edward Elgar Pub.
2	Micklitz, H., & Durovic, M. (2017). Internationalization of consumer law: A game changer (SpringerBriefs in political science).
3	Howells, Weatherill, & Weatherill, Stephen. (2005). Consumer protection law (2nd ed., Markets and the law). Aldershot, Hants, England ; Burlington, VT: Ashgate.
4	Ramsay, I. (2012). Consumer law and policy: Text and materials on regulating consumer markets (3rd ed.). Oxford: Hart.
5	Weatherill, S., & Edward Elgar Publishing. (2013). EU consumer law and policy (2nd ed., Elgar European law). Cheltenham: Edward Elgar Pub.